

Court No. - 34

Case :- WRIT - C No. - 29467 of 2012

Petitioner :- Sriram Dang

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Deveshish Mitra

Respondent Counsel :- C.S.C., Praveen Kumar Srivastava

Hon'ble Sheo Kumar Singh, J.

Hon'ble Ram Surat Ram (Maurya), J.

Heard learned counsel for the petitioner and Shri Upendra Mishra, learned counsel appearing for respondents.

By this writ petition, the petitioner has prayed for a writ of certiorari quashing the order dated 23.5.2012 rejecting the application of the petitioner for a fresh connection and a writ of mandamus directing the respondents to give new connection to the petitioner.

The case of the petitioner is that he has made an application for a fresh electricity connection which due to a dispute with the landlord is not being given.

Learned counsel for the respondents submits that the petitioner has not submitted any application for a fresh electricity connection after completing all necessary formalities, hence no electricity connection can be given.

In view of the facts and circumstances of the case, it is open for the petitioner to make a fresh application with all the requisites for fresh electricity connection and if that is made, the same shall be considered by the respondents in accordance with the provisions of clause 4.4 of the U.P. Electricity Supply Code 2005.

With these observations, the writ petition is disposed of finally.

Order Date :- 6.6.2012

Sunil Kr. Gupta